Outlook

Request for Urgent Engagement – Municipal Account Restructuring and Service Issues (Akasia Body Corporate)

From Errol Smith <errols47@gmail.com>
Date Tue 17 Mar 2026 05:52
To queenm@emfuleni.gov.za <queenm@emfuleni.gov.za>

Dear Queen,

Trust this message finds you well.

The Trustees of Akasia Body Corporate hereby formally request urgent intervention and engagement with the municipality regarding the scheme's municipal account and ongoing service delivery failures.

The situation has reached a critical point where immediate engagement with senior municipal officials is required to stabilise the account and restore sustainable service delivery.

1. Municipal Account and Outstanding Balance

The Body Corporate acknowledges that the municipal account reflects a significant outstanding balance. The trustees are committed to resolving this matter responsibly and in good faith.

However, the current balance has been materially exacerbated by factors outside of the Body Corporate's control, which require urgent review and correction.

We have already implemented corrective measures to stabilise the scheme, including:

- Implementation of a special levy
- Increase in monthly levies
- Active arrears recovery engagement with owners

Despite these efforts, the account continues to escalate due to compounding external issues.

We therefore formally request engagement with the Revenue / Credit Control Department and the Chief Financial Officer to:

- Restructure the outstanding balance
- Review and renegotiate the current payment arrangement
- Suspend further interest accrual pending investigation
- Establish a realistic and sustainable repayment plan
- Negotiate installing Municipality prepaid meters for compliant owners

2. Unresolved Water Meter Leak

The municipality has been notified on multiple occasions of a leaking main municipal water meter servicing the property, which has remained unresolved for several months.

This defect is directly contributing to inflated water consumption readings and the escalation of the municipal account.

We therefore request:

- Urgent inspection and repair by Engineering Services
- A retrospective account investigation and adjustment to quantify and correct the financial impact of the leak

3. Refuse Removal Charges Without Service Delivery

The Body Corporate continues to be billed for municipal refuse removal services that are not being consistently provided.

Due to this failure, the Body Corporate has been forced to appoint a private contractor to ensure sanitation, health, and safety within the complex.

We therefore request that the municipality:

- Review the refuse removal charges currently levied
- Suspend or credit these charges for periods where service delivery did not occur

4. Review and Renegotiation of Payment Agreement

A prior payment agreement exists; however, the Body Corporate has fallen into breach due to escalating financial pressure, largely driven by the issues outlined above.

The trustees are not seeking to avoid obligations, but rather to:

- Renegotiate the agreement into a sustainable structure
- Align repayment terms with the scheme's current financial capacity

5. Request for Urgent Meeting

Given the seriousness of the situation, we respectfully request an urgent meeting with the Municipal Manager, Chief Financial Officer, and relevant departments to address:

- Repair of the leaking water meter
- Review and correction of refuse removal charges
- Restructuring of the municipal account
- Renegotiation of the payment agreement

The trustees remain committed to working cooperatively and transparently with the municipality to resolve these matters and restore the account to good standing.

We request a response within seven (7) working days to arrange this engagement.

Yours faithfully

Errol Smith

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